

I. Request

1. The Secretary of State for Internal Administration requested an opinion from the National Data Protection Commission (CNPd) regarding the request for authorization to install and operate a video surveillance system at the National Palace of Mafra, submitted to him by the National Republican Guard (hereinafter GNR).
2. The request was presented under the terms of paragraph 3 of Article 5 of Law No. 95/2021, of December 29 (hereinafter Law No. 95/2021), which regulates the use and access by security forces and services and the National Authority for Emergency and Civil Protection to video surveillance systems for capturing, recording, and processing images and sound.
3. On November 29, 2021, a protocol was established between the GNR and the Municipality of Mafra for the implementation of a video surveillance system in public places, consisting of 4 cameras, covering the surroundings of the National Palace of Mafra, the Terreiro D. João V, the Largo do Conde de S. Januário, the Praça da República, and the road and pedestrian access to these areas.
4. The request is accompanied by 5 annexes:
 - x Annex A – Identification of the locations for camera installation;
 - x Annex B – Identification of the technical characteristics of the cameras to be installed at each location;
 - x Annex C – Cooperation protocol;
 - x Annex D – Data protection impact assessment;
 - x Annex E – Access profiles for the video surveillance system.

II. Subject of the opinion to be issued under Law No. 95/2021, of December 29

5. The CNPD assesses the request under the terms and for the purposes of paragraph 3 of Article 5 of Law No. 95/2021, of December 29 (hereinafter Law No. 95/2021), which regulates the use and access by security forces and services and the National Authority for Emergency and Civil Protection to video surveillance systems for capturing, recording, and processing images and sound, in conjunction with subparagraphs b) and c) of Article 87 of the Code of Administrative Procedure.
6. Under this legal provision, the scope of the opinion to be issued by the CNPD is limited to the compliance with the rules of security for the processing of collected data, as well as to the collection and processing of data (Article 16), procedural aspects in the case of recording facts with criminal relevance (Article 18), aspects related to the retention of recordings (Article 19), the rights of the data subject (Article 20), and the conditions for installation (Article 22).
7. Accordingly, the CNPD must verify whether the conditions for the exercise of the rights of access and deletion are ensured for all individuals appearing in recordings obtained by the system, when applicable, and guarantee the right to information, as well as assess and express an opinion on the collection and processing of personal data, especially if carried out through analytical management of the captured data, by applying technical criteria.

III. Video surveillance in public places of common use

A – Description:

8. The request for Opinion refers to the installation of a video surveillance system consisting of 4 fixed cameras, placed at the Rotunda EN 116 – Largo General Humberto Delgado; North Cloister; South Cloister; and the access roundabout to the School of Aramas.
9. Annex A delineates the geographical area covered and marks the angles/incidences of vision of the cameras to be installed.
10. The cameras to be installed are cameras with multi-sensor imaging and PTZ-PAN function (panoramic movement); TLT (vertical movement) and Zoom (appreciation or distancing movement), with a viewing coverage of 360 degrees.
11. All equipment captures images continuously, as they are equipped with night vision, have the capacity to introduce privacy masks, configure video analysis rules with motion detection capabilities, object typification, and event generation (Annex B, pages 6 to 12).

12. The monitoring system will be installed in the Situation Room (SSit) of the Territorial Command of Lisbon (Cter Lisbon), a reserved room with restricted access, permitted only to GNR military personnel accredited for this purpose, through the assignment of access profiles from the National Internal Security Network (hereinafter RNSI).

13. The transmission of images to the "SSit of Cter de Lisbon" will be ensured through the RNSI with all the security policies in communications that this network entails.

14. The recording of the registered data will be carried out through a server to be installed in an appropriate compartment for this purpose in the building of the Territorial Post of Mafra, to which only accredited GNR military personnel will have access, with access being recorded in the system as occurs with access to the SSit room.

15. The video surveillance equipment:

a) Will only capture and record images when individuals enter the field of vision of the video surveillance system;

b) To safeguard privacy, the cameras introduce masks directly into the camera sensor and not through software or any other type of encryption susceptible to decryption. Such masks are dynamically adjusted through the use of Zoom, not allowing the operator to display the protected contents;

c) Will not record sound, without prejudice to the installation and use of the system known as "voice alert";

d) Has protection against damage, acts of vandalism, and attempts to intrude into the system;

e) The person responsible for the conservation and processing of the data is the Chief of the Operations, Training, and Public Relations Section of the Territorial Command of Lisbon, in office;

f)

****All procedures for informing the public about the existence of the system will be guaranteed.****

g) In Annex E, it is stated that the platform allows for the creation of three user profiles: Operator Profile (assigned to a member of the GNR who is in the Situation Room of the Cter in Lisbon) which allows for the viewing of images in real-time, with the possibility of highlighting and fixing a specific camera whenever there is a need to monitor an occurrence in real-time, as well as, with prior authorization from the Officer/Service Senior in the Situation Room, allows for the extraction of images and the consultation or activation of any video analytics rule; Consultation Profile (assigned to the Service Senior Officer in the Situation Room on duty and to members of the Criminal Investigation Unit of Mafra) which allows: viewing images in real-time; consulting or granting permission for the consultation of recorded images; creating or granting permission for the creation of search rules using the video analytics tools provided by the system - consultations that are subject to registration in a specific form and subsequently validated by the person responsible for data conservation and processing – Head of the Operations, Training, and Public Relations Section on duty; allows access to recorded images and searching using video analytics tools, with extraction always validated by the person responsible for data conservation and processing, Head of the Operations, Training, and Public Relations Section on duty; Administrator Profile, which is assigned to the person responsible for data conservation and processing, Head of the Operations, Training, and Public Relations Section on duty, and allows: full management of the system, supervision, and authorization of image extraction for judicial processes and authorizes the use of data analytics application.

****B – Analysis:****

16. Regarding the physical security of the system:

a) In the AIPD, concerning risk mitigation measures, it is mentioned that access control to the image viewing rooms is done through an entry code or fingerprint reading. It is important to clarify the means that will be implemented and, if access is opted for via code, each military personnel must be assigned an individual code to allow for the identification of who was in the room at a given moment.

b) Since access to the server where the data is stored is done through an entry code, it is necessary to clarify whether this entry code refers to direct access to the server or to access to the room where it is located.

c) In the chapter on "Data Security" (page 9 of the AIPD), reference is made to "subcontractor," but the

entity is not identified, nor the scope of these services. In the case of the subcontractor intervening in maintenance or assistance provision, it must be ensured that such assistance is not performed remotely.

d) It is mentioned regarding data processing security (Page 9, item f) that the "installed software has protection against cyber-attacks." However, the type of protection adopted and for what type of attacks is not indicated, which does not allow the CNPD to comment on its efficiency.

e) It is also mentioned that "the cameras accept SD cards to record videos internally in case of network failure," but this information is insufficient. Procedures for handling, storage, and security during transport of these cards should be specified.

17. Regarding the audit mechanisms and use of the system:

f) A retention policy for activity logs should be defined, setting a retention period for the data and key indicators for audit reports regarding monitoring security in accesses and operations performed. It is expected that these logs, which should contain data on the operations performed and not personal data, have an appropriate retention period to allow for the detection of patterns or the reconstruction of accesses and anomalous actions, under penalty of their purpose being undermined. Therefore, similar to other situations, the CNPD recommends retaining audit logs for a period of two years.

18. Regarding the architecture of communications and image transmission:

g) It is mentioned that the RNSI will be used for communication and image transmission, which ensures "all security policies." It is necessary to clarify the security policies specifically applicable to the video surveillance system to ensure total transparency regarding the implemented protection protocols, encryption, and access control.

19. Regarding the technical characteristics:

h) It is indicated that the cameras contain an integrated web server for video capture and configuration available in a standard internet browser, using the HTTP protocol without the need for additional software. The HTTP protocol is not encrypted, so this functionality presents a vulnerability of access in case of network compromise, as there may be capture of access credentials to the cameras. It is important to change the factory default password to prevent the system from being compromised from the outset. It is also important to reconfigure the integrated server to HTTPS and implement a password management policy for the cameras, avoiding the use of a single password for all equipment.

i) It is indicated that the cameras are compatible, among others, with the protocols IPv4; IPv6, HTTP, HTTPS, DNS, NTP, RTSP, RTCP, RTP, TCP, UDP, IGMP, ICMP, DHCP, and ARP. All protocols that are not essential for the operation of the system must be disabled for security reasons.

j) Given that the digital network is used for the transmission of images, it is recommended that the protocol used be encrypted, using TLS (Transport Layer Security) 1.2 or higher (since only version TLS 1.2 or higher guarantees security in communications) and/or utilize a manufacturer's Codec.

20. Regarding authentication and user profiles - Article 3 of Ordinance No. 372/2012, of November 16:

k) The documentation presented states that the viewing of images is done exclusively by military personnel accredited for this purpose, through the entry of a code or reading of a fingerprint. It must be ensured that if the chosen mechanism is the code, it is personal and non-transferable.

l) It is understood that the extraction of images should be a privileged access functionality and there should be a record of which cameras were accessed, the time interval of the extraction, as well as the identification of the person responsible for the execution.

21. Regarding the procedures for image extraction:

In Annex D, which contains the AIPD, it is provided that "access to the data and the respective extraction of video recordings will depend on prior authorization from the data processing manager (...)" and also that "the recordings defined by the Public Prosecutor's Office as relevant for criminal investigation will be kept until the end of the criminal process." Nothing more is mentioned about the

extraction of images, specifically regarding how these recordings are preserved to be excluded from the 30-day retention period of the system's archive.

22. Regarding the collection of images, it should be contemplated in the solution that the management software of the video surveillance system has mechanisms that enable export in a digitally signed format, attesting to the veracity of its content. It should also refer to the presence of encryption mechanisms if it is intended to protect the export with an access password or another security factor.

Conclusions

23. The CNPD, under the authority granted to it by Law No. 95/2021 and in accordance with the terms and foundations set forth above, recommends:

- a) That the means to be implemented for controlling access to the image viewing rooms be clarified and, if access is chosen via code, each military personnel should be assigned an individual code to allow identification of who was in the room at a given moment;
- b) Since access to the server where the data is stored is done through an entry code, it is necessary to clarify whether this entry code refers to direct access to the server or to access to the room where it is located;
- c) In the chapter on "Data Security" (page 9 of the AIPD), reference is made to "subcontractor," but the entity is not identified, nor the scope of these services. In the case that the subcontractor is involved in maintenance or assistance, it must be ensured that this assistance is not performed remotely;
- d) It must be clarified what type of protection against cyber-attacks the installed software has and for what types of attacks;
- e) Regarding the SD cards for recording videos in case of network failure, it is important that the handling, storage, and security procedures for transporting them be specified;
- f) A retention policy for activity logs should be defined, setting a retention period for the data and key indicators for audit reports in the context of monitoring security in access and operations performed.

Lisbon, June 3, 2025

Paula Meira Lourenço (President)

Signed by: PAULA CRISTINA MEIRA LOURENÇO

Date: 2025.06.03 21:35:00+01'00'

Certified by: Diário da República

Certified attributes: President - National Data Protection Commission